

Accessing Maine Court Records Online

Sawyer Loftus | Bangor Daily News

Overview

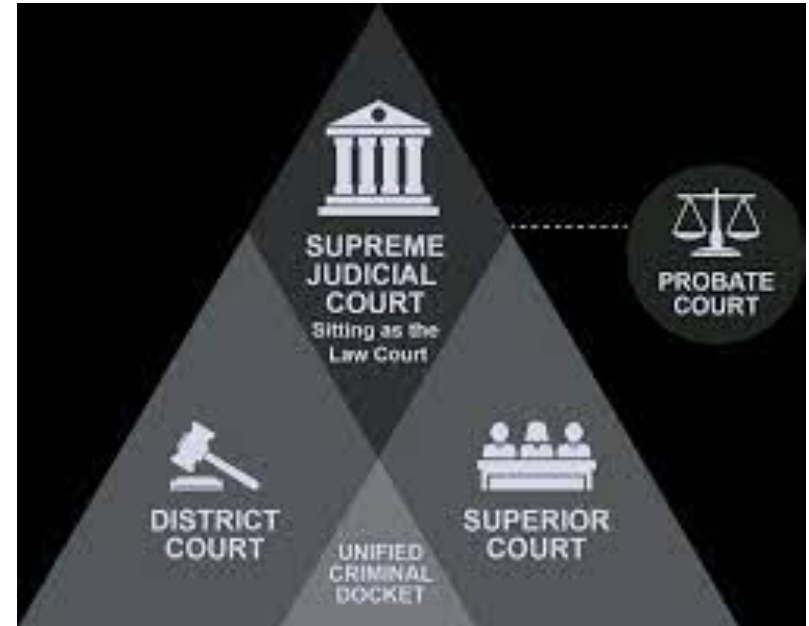
- ➔ Brief overview of Maine state court system.
- ➔ What court records you can access online and where.
- ➔ Limitations.
- ➔ Handy rules to know.



Winthrop, Maine -- October 4, 2023 -- The Maine Judicial Supreme Court heard arguments if the Sunday hunting ban is now unconstitutional based on the 2021 right-to-food amendment. Arguments were heard Wednesday morning before an auditorium of students at Winthrop High School. (Linda Coan O'Kresik | BDN)

Maine Court System

- Four different types of courts.
 - Federal (Two federal courthouses, one district)
 - Tribal
 - Probate
 - State
- Within the state court:
 - District Court
 - Superior Court
 - Supreme Judicial Court (appellate)
 - Probate (County)



What you can access online

Online records are limited to Bangor District Court, Penobscot County Superior Court, the statewide Business and Consumer Docket (BCD), Traffic Court, and Lewiston District Court and Androscoggin County Superior Court BUT ONLY for most family and civil case types

What you can see:

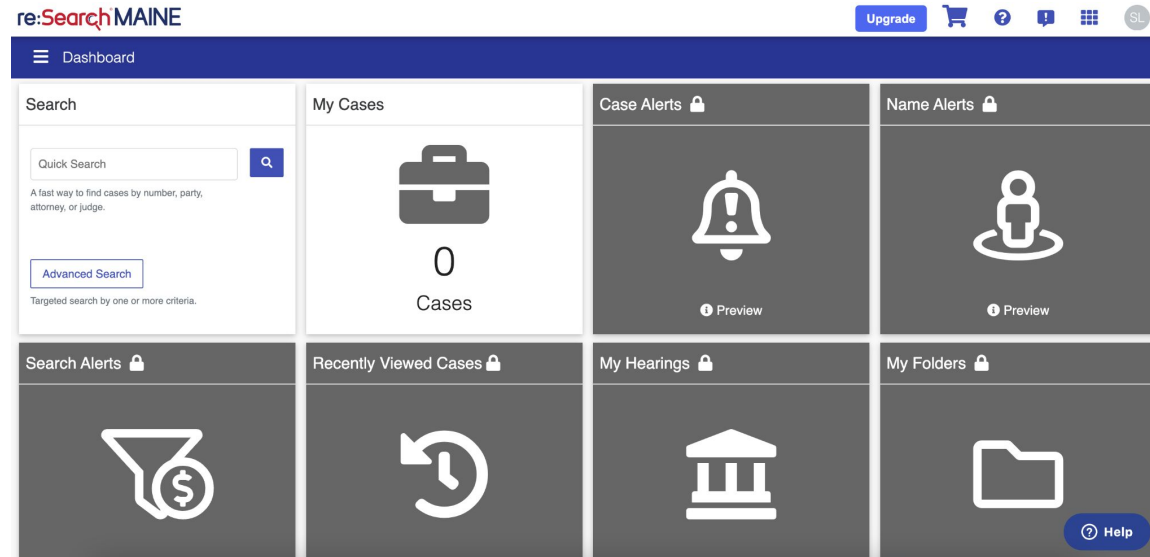
- Traffic tickets (citations) (statewide)
- Business and Consumer Docket cases;
- Personal injury tort;
- Non-personal injury tort;
- Contract;
- Declaratory or equitable relief;
- Constitutional/civil rights;
- Title to real estate and related proceedings;
- 80B/80C appeals and other civil appeals;
- Money judgments; and
- After judgment, if the plaintiff prevailed, in Forcible Entry and Detainer (FED or eviction), small claims, and foreclosure cases.

A few resources before we start

- There are a few presentations the courts have already done. They are available at the following link:
<https://www.courts.maine.gov/ecourts/efile-resources.html>.
- Access to court records is governed by the [Maine Rules of Electronic Court Systems \(MRECS\)](#).
- There is also a landing page for all thing [eCourt](#).
- Members of the public may request paper copies of public electronic court records **free of charge** at the Penobscot Judicial Center in Bangor, the Business and Consumer Court in Portland, and the Lewiston District Court.
- If something you're looking for is not public, you can file a motion for access in accordance with applicable court rules.

How to access the records

- Maine state courts are moving from what is called the “Maine eCourts Odyssey Portal” to re:SearchMaine to access publicly available court records.
- Go to: <https://researchmaine.tylerhost.net/CourtRecordsSearch>
 - ◆ You will need to make an account with your email.
- Once, you’re in there, it should look like this:



How to access the records (cont.)

- ➔ Once you're in the eCourt system, there is a search bar for a "quick search."
This works best if you know the docket number, parties, attorneys or the judge.
- ➔ You can also perform a more advanced search that looks like this:

Advanced Search

Search for:

Search by:

- ✓ Attorney Name
- Attorney Number
- Business Name
- Case Category
- Case Description
- Case Filed Date
- Case Judge
- Case Location
- Case Number
- Case Status
- Case Sub Type
- Case Type
- Party

Let's give it a test run, shall we?

- <https://researchmaine.tylerhost.net/CourtRecordsSearch/#!/dashboard>
- Here's what we're going to search for: "Bangor Daily News."
- Then, we're going to search Lindsay C. Putnam (for traffic, yes she said we could).
- Finally, we'll do Nathan Reardon (lots of stuff).

Limitations

- Sometimes, you can see the things that have been filed, but can't access the record without going in-person.
 - ◆ **“To access all other publicly available electronic court documents, members of the public must visit a courthouse where eFiling is available.”**
- There are NO criminal records.
- The system is fairly limited.
- If you can see the documents, odds are you will have to pay for them.

Tips and tricks for when you inevitably have to go to the courthouse

- Two key administrative rules: ADMINISTRATIVE ORDER JB-05-15 and ADMINISTRATIVE ORDER JB-05-16
- JB-05-15, Section 1-E (called CAMERAS AND FILE DOCUMENTS) gives us the authority to photograph records.
- JB-05-16, states in general that all phones, computers or other electronic devices have to shut down prior to entering a courtroom (unless you have permission from the presiding judge). It also prohibits recording audio, or taking photos or videos in public, common spaces in the courthouse.
- **The order specifically states: “This order does not apply to the photographing of court records.”**
- It is important for reporters to know that **you absolutely can photograph court records**. Sometimes the clerks and other court staff don’t know that.

People to contact

Having issues? Reach out to:

Barbara Cardone, Director of Legal Affairs and Public Relations

P: (207) 213-2997 E: barbara.cardone@courts.maine.gov

Crystal Sullivan, Court Communications Coordinator

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You can also reach out to me and I can try to help.

P: 207-217-1450 (cell) E: sloftus@bangordailynews.com

Questions?
